

STATE OF NEW YORK SUPREME COURT
COUNTY OF NEW YORK

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IAN REISNER,

Index No.:

Plaintiff,

-against-

MAUREEN LUPO,

Defendant.
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**AFFIRMATION OF PAUL BROWN IN SUPPORT OF IMMEDIATE EMERGENT
RELIEF REQUESTING AN OTSC FOR DECLATORY RELIEF AND RESTRAINING
ORDER AGAINST MAUREEN LUPO BASED ON A FRAUDULENT LEASE, ILLEGAL
VIOLATIONS AND COVERSION OF FUNDS AT 510W 42ND STREET**

STATE OF NEW YORK
COUNTY OF NEW YORK

I, Paul Brown, affirm under penalties of perjury under the laws of the State of New York that the following is true and correct:

1. I am a business partner involved in the operations of the entertainment and event spaces at 510W 42nd Street (the "Property") in New York City, New York.

2. This affirmation outlines my direct observations and interactions with Ms. Maureen Lupo regarding her unauthorized activities at the Property between June and December 2024.

3. Ms. Lupo organized and hosted multiple events at the Property without obtaining authorization from Ian Reisner, the master leaseholder.

4. These events frequently violated operational rules, including safety regulations and legal licensing requirements.

5. On the weekend of November 7-9, 2024, I directly intervened to shut down an illegal, unauthorized event organized by Ms. Lupo. (See Exhibit 1 – Emails from Paul Brown; see also Exhibit 2 – Email from Lemmerman re Weekend of Nov 7,8,9 Club Activities).

6. Despite my direct intervention and explicit warnings to cancel a planned high-profile event featuring the artist “Goldy,” Ms. Lupo proceeded with the event. (See Exhibit 1; see also Exhibit 2).

7. I had stressed to all parties involved that this event should not go forward as it lacked proper licensing and posed significant risks, including increased scrutiny from the community board, police, and FDNY. (See *id.*).

8. The police intervened due to noise complaints and suspected violations of local ordinances. (See *id.*).

9. During these events, Ms. Lupo also bypassed required financial protocols by using her personal point-of-sale terminals for transactions. This jeopardized the business by avoiding sales tax payments and exposing the Property to potential liabilities. (See Exhibit 1).

10. Moreover, Ms. Lupo’s negligence extended to security lapses, including allowing weapons onto the premises.

11. In the morning of December 9, 2024, a firearm was brought into the venue, escalating an already volatile situation. This event showed the grave danger posed by her continued disregard for safety measures. (See Exhibit 3 – Emails from Lemmerman; see also Exhibit 4 – Investigation Report).

12. Other involved parties and I repeatedly provided both formal and informal warnings to Ms. Lupo regarding her non-compliance.

13. Ms. Lupo has also opened accounts with numerous vendors without authorization, leading to financial liabilities and reputational harm as vendors are now pursuing action against her. (See Exhibit 1).

14. We also required Ms. Lupo to provide documentation for insurance and security deposits before signing any lease agreements. Unfortunately, her failure to comply with these conditions exacerbated the risks to the Property. (See Exhibit 5 – Emails Showing Lupo's Reluctance).

15. Upon personal information, Ms. Lupo has been engaging in an ongoing Ponzi scheme, attracting new investors under false pretenses to fund her lavish lifestyle. She admitted to taking money from outsider investors and using it for personal expenses, including a \$17,000 table spend. (See Exhibit 1).

16. Additionally, she sold a 7.5% stake in the 'Entertainment Complex' without the Mr. Reisner's knowledge. (Exhibit 6 – Email Re_ NOISE COMPLAINTS, THUGGERY, Master Keys, SLA investigation etc).

17. Despite multiple offers of compensation or settlements to vacate the Property, Ms. Lupo refused to cooperate, continuing her unlawful activities and ignoring all attempts to resolve the situation amicably.

18. Ms. Lupo's actions caused significant disruptions to the operations and reputation of the Property. Her unauthorized use of the venue led to substantial financial losses, as she redirected event revenues into personal accounts, bypassing oversight mechanisms essential for operational integrity. (See Exhibit 7 – Illegal Revenue Overview).

19. Community backlash arose, driven by police interventions and complaints from neighboring businesses and residents regarding the noise, safety concerns, and regulatory violations at her events.

20. Ms. Lupo's failure to adhere to New York State Liquor Authority (SLA) regulations and event permitting requirements exposed the business to penalties. Her disregard for safety and compliance has strained relationships with community stakeholders and complicated efforts to maintain a professional, secure event space.

I affirm this 9 day of Jan, 25, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, and I understand that this document may be filed in an action or proceeding in a court of law.


Paul Brown

1/9/25